

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Yahya Afridi, CJ
Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Petition No. 303-P of 2018

(Against the judgment dated 08.02.2018 of the Peshawar high Court, Peshawar passed in W.P. No. 3034-P/2014)

Sultan

...Petitioner(s)

Versus

Mst. Rosh Zeb etc.

...Respondent(s)

For the Petitioner(s): Nemo

For the Respondent(s): Not represented

Date of Hearing: 04.06.2026

ORDER

Yahya Afridi, CJ.- The present petition against judgment dated 08.02.2018 passed by the learned Peshawar High Court, Peshawar arise from a marital dispute that, though legally dissolved over a decade ago, continues to cast a troubling shadow over the life of Mst. Rosh Zeb, the divorcee wife (the “**respondent**”).

2. At the very outset, it must be clarified that the matter presently seizing the attention of this Court is not the dispute about the legality of *khula*; that question stands decisively answered by courts of competent jurisdiction below. What has perturbed us is, in fact, the persistent refusal of Mr. Sultan, the divorced husband (the “**petitioner**”) to accept the lawful exit of the respondent from marriage, and the manner in which legal process has been weaponised against her for exercising that right.

Background:

3. The learned Judge, Family Court-I, Peshawar *vide* decree dated 13.09.2014, dissolved the marriage between the respondent and the

petitioner on the basis of *khula* in lieu of the respondent's dower. The said decree expressly recorded that pre-trial reconciliation efforts between the parties were undertaken but failed, as the respondent stated that owing to the unendurable conduct and attitude of the petitioner, she had come to harbour extreme hatred towards him and was not willing, under any circumstances, to reside with him or continue the marital relationship.

4. The petitioner objected to the grant of *khula*. However, the respondent remained resolute in her decision; she categorically expressed that she did not wish to be his wife at any cost. In these circumstances, the Family Court, applying requisite principles of Islam and settled law on the subject, granted the respondent *khula* in lieu of her dower.

5. We find it appropriate to briefly advert to the circumstances that compelled the respondent to seek *khula*, which stand revealed from the record of the proceedings before the Family Court. In addition to the order dated 13.09.2014, as discussed above, the record includes two other orders dated 26.07.2014 and 23.10.2014, pertaining to the custody of the minor daughter of the parties. A perusal of these orders discloses that the petitioner had allegedly not only beaten and forcibly ousted the respondent from the matrimonial home, but had also retained their minor daughter with the apparently vicious object of separating the mother from her four-year-old child. These allegations were, of course, vehemently resisted by the petitioner; however, not through legally admissible evidence, but instead by branding the respondent a woman of "loose character", clearly in the hope of puncturing her credibility. In fact, the conduct of the petitioner throughout the Family Court proceedings was found to be wanting. In what can only be described as blatant disregard of judicial authority, he failed to comply with interim custody directions given by the Family Court, ultimately compelling the learned Family Judge to pass a strongly worded decree granting custody of the minor child to the mother, the present respondent.

6. Continuing in the same stubborn spirit, the petitioner, even after the decree of *khula*, refused to accept the finality of the dissolution of marriage. The respondent observed the prescribed period of *iddat* and thereafter, contracted a second marriage with one Shams-ur-Rehman. It was only after this remarriage that the petitioner initiated a fresh cycle of litigation. He filed an application under Section 22-A of the Code of Criminal Procedure, 1898 (the “**CrPC**”) before the learned Justice of Peace, Peshawar, seeking registration of a criminal case against the respondent on the assertion that the respondent was still his lawful wife and had entered into a second *nikah* during the subsistence of the first. He also went as far as to allege that the sister of the respondent was also in *nikah* with the same man, thereby further impugning the validity of the second marriage of the respondent. Upon the Justice of Peace seeking comments, the concerned SHO reported that the petitioner had already filed a private complaint on identical allegations before the learned *Ilaga* Magistrate, which had been dismissed vide order dated 10.02.2016. The learned Magistrate had already held that the respondent was no longer in the wedlock of the petitioner at the time she contracted the second marriage, the *khula* having already taken effect and the period of *iddat* having been duly observed. The allegation regarding the sister of the respondent being married to the same man was also found to lack any evidentiary basis. Accordingly, the application of the petitioner under Section 22-A, CrPC, being devoid of any and all merit, was dismissed by the learned Justice of Peace.

7. Undeterred, the petitioner, thereafter, filed Writ Petition No. 1135-P/2017 and Writ Petition No. 3034/2017 before the High Court, assailing the orders of the learned Family Court and the learned Justice of Peace, respectively. Both petitions were dismissed as being devoid of merit through the consolidated impugned judgment dated 08.02.2018. Notwithstanding his repeated failure before multiple judicial forums, the

petitioner has now approached this Court, seeking to revive an issue that stands conclusively settled.

8. The circumstances narrated above provide necessary context for appreciating the manner in which the petitioner has repeatedly invoked the judicial process. They disclose a litigant who has persistently disregarded the authority and finality of judicial findings, simply out of spite for his former spouse. His attitude speaks as much towards judicial authority as it does to his continued treatment of the respondent, and it is in cognizance of this incessant disrespect that we are constrained to make the following observations.

Dissolution of Marriage Through Khula

9. Although the challenge mounted by the petitioner to the decree of *khula* is plainly misconceived and devoid of legal substance, the Court considers it appropriate, given the manner in which the issue has been repeatedly agitated, to briefly restate the legal position governing dissolution of marriage through *khula*.

10. The institution of *khula* occupies a well-recognised place in Islamic jurisprudence as well as in the statutory framework governing Muslim family law in this country. Its purpose is clear and unambiguous: to afford a woman a lawful means of exiting a marital relationship that she no longer wishes to continue. The right to seek *khula* recognises that marriage, by its very nature, rests upon mutual willingness, and that the law does not compel the continuance of a union that has ceased to serve its purpose for one of the parties. The mechanism of *khula* itself reflects the seriousness of such a decision; it requires the wife, as consideration for the severance of the marital bond, to even forgo her dower, in whole or in part, depending upon the circumstances of the case. This requirement, being characteristic of the very concept of *khula*, underpins it as a deliberate legal choice, attended by tangible sacrifice on the part of a woman and not a remedy lightly invoked.

11. Such understanding of *khula* necessarily gives way to the fact that once the court is satisfied that reconciliation is not feasible and that the claimed right/need of the wife to dissolve the marriage is genuine and settled, *khula* operates as a complete and valid mode of dissolution of marriage, carrying full legal effect. In this sense, it stands within the legal framework as a right of exit available to the wife, corresponding in its own sphere to the right of *talaq* available to the husband, both reflecting the principle that marriage is not intended, in both religion and law, to become an insufferable or inescapable bond.

12. The Family Court in the present case applied this understanding faithfully. It considered reconciliation, found it impossible, and acted upon the unequivocal refusal of the respondent to continue the marriage. Yet, the principal ground of the petitioner to challenge the decree of *khula* before us rests on the assertion that he was not afforded an adequate opportunity for reconciliation. *Firstly*, this assertion is contrary to the record, which is explicit in the order dated 13.09.2014 of the learned Family Court that reconciliation efforts were undertaken but failed in view of the clear and unequivocal refusal by the respondent to continue the marital relationship. *Secondly*, and in any event, the contention of the petitioner proceeds on a fundamental misunderstanding of the nature and legal effect of *khula*, as already set out above. The requirement of reconciliation is not a perpetual or open-ended entitlement in favour of the husband; it is a pre-trial procedural measure that operates only until the court is satisfied that the marriage cannot be sustained.

13. In the present case, the Family Court expressly recorded the settled and unequivocal aversion of the respondent towards the petitioner, to the extent that cohabitation was found to be inconceivable. Once such a finding is made, the possibility of reconciliation in the proceedings before the Family Court ceases to exist. The law does not require a wife to negotiate, justify, or temper her aversion in order to make it palatable to the sensibilities or expectations of the husband. Where hatred and

revulsion are found to preclude the continuation of marital life, dissolution of marriage through *khula* follows as a matter of legal consequence. Thus, the grievance raised by the petitioner is not only factually inaccurate but legally misconceived.

Legal Process as a Vehicle for Reputational Harm

14. The second aspect that arises for consideration is the manner in which the present proceedings, and those preceding them, have been employed in a way that extends beyond the assertion of legal rights and enters the domain of reputational and social harm. The invocation of legal process, in the circumstances of the present case, cannot be viewed in isolation from its practical consequences for the respondent, as repeated allegations of this nature carry a grave and foreseeable impact on social standing, personal dignity, and perceived moral character.

15. The allegation that the respondent contracted a second marriage during the subsistence of the first entails serious social consequences that extend far beyond the legal record. In the socio-legal context of this country, such an assertion is readily capable of conveying an insinuation of moral impropriety, including adultery, and thereby operates to stigmatise the woman concerned. This is particularly so where the allegation disregards an existing judicial decree of *khula* and the undisputed observance of the prescribed period of *iddat*. In effect, it seeks to cast question over a relationship that is entirely lawful and *halal*, and to convert a settled legal status into a matter of moral suspicion.

16. Moreover, the invocation of criminal law to advance or perpetuate such an allegation, notwithstanding the subsisting decree of *khula*, constitutes a clear misuse of legal process. Criminal proceedings are intended to address wrongdoing of a criminal nature and cannot be used to impose undue reputational harm upon a former spouse for exercising a lawful right. The fact that the petitioner persisted in pursuing identical allegations even after the dismissal of his private complaint by a competent

criminal court further reinforces that the object of such proceedings was merely continued agitation of the status and standing of the respondent. Such persistence, in the face of repeated judicial findings to the contrary, regrettably exposes the vexatious character of the litigation.

17. This Court states, without ambiguity, that a woman who has lawfully obtained *khula* and has observed the prescribed period of *iddat* is fully entitled, in law, and as a valid realisation of her inherent personal autonomy, to contract a subsequent marriage of her own choosing. That right is neither contingent upon the approval of her former husband nor subject to his continuing moral or legal supervision. Any attempt to criminalise or delegitimise the exercise of that right through false or baseless litigation amounts to an abuse of the process of court. It also constitutes a serious affront to the dignity and autonomy of the woman concerned, which the courts are bound to protect against misuse of legal processes.

Broader Implications of Gendered Asymmetries in Social Relations

18. The present matter also compels the Court to address the broader implications of gendered asymmetries in social relations across our society, as are glaringly evident in the present case. The insistence of the petitioner on re-agitating a settled marital status, in the absence of any legal foundation, exposes an unwillingness to accept the finality of the lawful right of a woman to dissolve a marriage. Such conduct is inevitably reflective of a broader social pattern in which the assertion of autonomy by a woman is construed not as the exercise of a right, but as a challenge to be resisted.

19. The Court is not oblivious to the disturbing instances of abuse against women that continue to come to light across the country. These developments render it all the more important to recognise that litigation that is initiated or sustained with the object of gendered harassment, humiliation, or reputational harm must also be viewed as abuse against

women. Frivolous proceedings, false criminal allegations, and unwarranted character attacks during judicial processes operate in a manner that seeks to exert pressure, create stigma, and compel compliance through intimidation. Given the existing vulnerabilities faced by women in society, such practices not only undermine their social standing and professional opportunities, but also have a direct chilling effect on their access to legal and institutional protection. In cases such as the present, where remarriage has taken place, such conduct may further imperil settled familial relations and personal security.

20. Such practices cannot be permitted to persist. This Court has, in a series of matters, repeatedly warned that the process of law is not to be employed as an instrument of harassment, humiliation, or coercive pressure, particularly against women and other vulnerable persons. Yet, the recurrence of such conduct compels the Court to reiterate, yet again, that where legal process is invoked in disregard of clear judicial guarantees, it is not merely the individual litigant who is wronged, but the integrity of the justice system itself that stands compromised, thereby obligating the Court to intervene decisively.

Conclusion:

21. The present petition is devoid of merit. It is founded on false premises, pursued with obduracy, and aimed not at securing justice but at intimidating and punishing the respondent for exercising rights guaranteed to her by law and religion.

22. The criminal proceedings and applications initiated by the petitioner on the premise that the respondent's *khula* was ineffective or that her subsequent marriage was unlawful are declared to be frivolous, vexatious, and abusive in nature.

23. Before parting, it is expected that courts across the country remain vigilant against the misuse of legal process in matters arising after

dissolution of marriage, particularly where allegations are advanced that carry the potential for grave reputational and social harm to women. No court ought to permit its processes to be reduced to instruments of intimidation or to become vehicles for the perpetuation of abuse against women, whether physical, psychological, social, or legal in nature. The judiciary bears an obligation to ensure that its authority is not harnessed for coercive ends and that the dignity of all litigants remains scrupulously protected. Frivolous and vexatious litigation, especially where pursued to inflict personal or reputational harm, shall be met with firm judicial response in accordance with law, including the imposition of appropriate costs.

24. Accordingly, this petition is dismissed with costs quantified at **Rs. 500,000** (five hundred thousand), payable by the petitioner to the respondent within thirty days, failing which the same shall be recoverable through execution proceedings before the Family Court concerned.

Chief Justice

Judge

Judge

Islamabad, the
4th of June, 2026
Approved for reporting

Arif